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AMAZON.COM SERVICES, LLC and
AMAZON LOGISTICS, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1-5,

Defendants.

Case No. 8:22-CV-01727-FWS-JDE

DEFENDANTS AMAZON.COM SERVICES, LLC AND AMAZON LOGISTICS, INC.'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AND FIFTH CLAIMS IN THE FIRST AMENDED COMPLAINT

Date: February 16, 2023
Time: 10:00 a.m.
Judge: Hon. Fred W. Slaughter
Ctrm: 10D

TO THE UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF CALIFORNIA, AND TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE THAT on February 16, 2023 at 10:00 a.m., or as soon thereafter as the matter may be heard before the Honorable Fred W. Slaughter, in Courtroom 10D of the United States District Court for the Central District of California, located at 411 West 4th Street, Room 1053, Santa Ana, California, 92701, Defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together, "Amazon") will, and hereby do, move this Court for an order pursuant to Federal Rule of Civil Procedure 12(b)(6) dismissing Plaintiff Miguel Lerma, Jr.'s First and Fifth Claims for Relief against Amazon with prejudice for failure to state a claim for relief.

Plaintiff's first claim for alleged violation of California Penal Code § 290.46 ("Megan's Law") should be dismissed because the First Amended Complaint and judicially noticeable materials make clear that Amazon did not engage in any unlawful conduct. Megan's Law prohibits an employer from utilizing information obtained from the Megan's Law website concerning registered sex offenders to make employment decisions. But it does not prohibit an employer from obtaining and utilizing the same or similar information from alternative sources, such as court searches and/or background check reports.

Here, Amazon received a background check report on Plaintiff from Defendant Accurate Background, LLC ("Accurate"). First Amended Complaint ("FAC"), ¶¶ 24, 59. In preparing the report, Accurate ran searches of Plaintiff's criminal history in various courts, including Orange County Superior Court. Request for Judicial Notice ("RJN"), Ex. 1 (Background Check Report). The search of criminal records in Orange County identified Plaintiff's felony convictions for rape duress menace and rape by use of drugs. *Id.* The background check report did not contain any information obtained from the Megan's Law website. *Id.* In

rescinding Plaintiff's conditional job offer, Amazon relied upon the criminal history information from Orange County Superior Court that appeared in the background check report, not information disclosed on the Megan's Law website. FAC, ¶¶ 24, 59. Because Amazon's consideration of Plaintiff's felony conviction history was permissible, Plaintiff's First Claim for Relief lacks merit and should be dismissed with prejudice.

Because Plaintiff's First Claim for Relief against Amazon lacks merit, so too does his Fourth Claim for Relief under California's Unfair Competition Law ("UCL"). Plaintiff premises his UCL claim on Amazon's alleged violation of Megan's Law. Since that claim fails as a matter of law, then so too does his derivative UCL claim. This claim fails for the additional, independent reason that Plaintiff is not entitled to injunctive relief, the sole remedy sought in connection with his UCL claim. As a threshold matter, Plaintiff lacks standing to sue for an injunction. Because Plaintiff does not currently work for Amazon, an injunction requiring Amazon to comply with certain provisions of the law will not benefit Plaintiff. Moreover, Plaintiff is not entitled to equitable relief where he has an adequate remedy at law. Because Plaintiff seeks compensatory damages in the FAC, he cannot allege that he lacks an adequate remedy at law. Accordingly, Plaintiff's UCL claim should be dismissed with prejudice.

This Motion is based on this Notice of Motion and Motion to Dismiss; the accompanying Memorandum of Points and Authorities; Amazon's Request for Judicial Notice; Amazon's [Proposed] Order; the files and records in this case; and any argument of counsel at the hearing on this matter.

This Motion is made following the conference of counsel pursuant to L.R. 7-3 which took place on November 15 and December 6, 2022.

Dated: December 15, 2022

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
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